



File No.: EXP202210525

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 2, 2022, the DTO. SEG. CP. NAVALCARNERO (MADRID-IV) (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located in the MADRID IV-NAVALCARNERO PENITENTIARY CENTER, with indications of a possible violation of the provisions of Articles 42.5 and 58.1 c) of Law 5/2014, of April 4, on Private Security, relating to video surveillance services in the field of private security.

The reasons supporting the complaint are as follows:

The complainant provides a Complaint Record dated August 24, 2022, which states that the respondent is assigned by his company, TRABLISA MULTISERVICIOS, to the Madrid IV Penitentiary Center in Navalcarnero, as a security guard and that he captured images of the penitentiary's video surveillance system with his mobile phone, in which a visitor to the Center appeared, to send these images via WhatsApp to other colleagues.

The documents submitted are:

- Reports made by the FFCCSE
- Image uploaded in the WhatsApp chat of Trablisa guards in Madrid-IV (Navalcarnero) reflected in Annex II of the record/complaint and request for the initiation of procedure number

***PROCEDIMIENTO.1 for violation of private security regulations dated August 24, 2022.

SECOND: On October 7, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: On December 21, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged violation of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: On January 16, 2023, the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), being carried out by publication on the edict board in accordance with Article 44 of said legal text, as the notification made by postal means was returned due to unknown address, and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the respondent.

In response to the request from this Agency, on March 8, 2023, the AEAT provided the tax address of the respondent, so on March 24, 2023, the proposal for resolution was successfully notified, granting a period of TEN DAYS for the respondent to allege whatever he deems appropriate in his defense and to submit the documents and information he considers pertinent, in accordance with Article 89.2 of the LPACAP; however, despite confirming the receipt of said proposal for resolution, no allegations have been submitted by the respondent.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

FACTS

FIRST: The respondent, a security guard in a penitentiary center, captured images of the video surveillance system of the Penitentiary Center with his mobile phone, in which a visitor to the Center appeared, and sent these images via WhatsApp to other colleagues.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

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The images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions established in the GDPR.

III

Law 5/2014, of April 4, on Private Security, in its article 42.5 establishes the following:

"The monitoring, recording, processing, and registration of images and sounds by video surveillance systems shall be subject to the provisions of the regulations on personal data protection, and especially to the principles of proportionality, suitability, and minimal intervention."

Said regulatory text in its article 58.1 c, considers as a very serious infringement:

c) The lack of due confidentiality regarding the facts known in the exercise of their functions or the use of material or technical means in such a way that it infringes upon the right to honor, personal or family privacy, one's own image, or the secrecy of communications when it does not constitute a crime."

Article 6.1 of the GDPR establishes the circumstances that allow for the lawful processing of personal data, indicating the following:

"1. The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child. The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities."

IV

Instruction No. 4/2022, of July 28, 2022, from the General Secretariat of Penitentiary Institutions, which regulates the processing of personal data obtained through the recording of images and sounds by the video surveillance systems existing in various penitentiary establishments, explains the following:

“The Organic Law 3/2018, of December 5, on personal data protection and guarantee of digital rights (hereinafter LO 3/2018); and the Organic Law 7/2021, of May 26, on personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter LO 7/2021), establish different legal protection and action regimes that must be regulated.”

Furthermore, said instruction clarifies that “on one hand, regarding the processing of data obtained through video surveillance that does not affect persons deprived of liberty and that is not directly related to criminal enforcement, it shall be subject to the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter GDPR) - which repeals Directive 95/46/EC (GDPR) - and to the provisions of Article 22 of Organic Law 3/2018, of December 5.

On the other hand, regarding the legal regime detailed for the recordings of persons deprived of liberty, it shall be subject to the provisions of Organic Law 7/2021 and to the recommendations made by the Ombudsman for the specific penitentiary context.”

V

It is considered that the facts presented, that is, capturing with a mobile phone the images from the video surveillance system of the Center, in which a visitor to the Center appeared, to disseminate them via WhatsApp to other colleagues, violate the provisions established in Article 6 of the GDPR, which could constitute the commission of an infringement classified in Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the...

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total annual global business volume of the previous financial year, opting for the highest amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;

For the purposes of the statute of limitations for violations, the violation mentioned in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and will be subject to a three-year statute of limitations, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

VI

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the violations of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.”

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j).

In deciding on the imposition of an administrative fine and its amount in each individual case, the

following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

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- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.” Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continuing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case on the entity claimed as responsible for an infringement classified under Article 83.5.b) of the GDPR, an initial assessment considers the following aggravating factors to be concurrent:

- o Severity of the facts, as the respondent took advantage of their position as a security guard and access to images to capture and disseminate them.
- o Intentionality in the action, as such actions are not part of their professional duties.

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Proceed to graduate the sanction to be imposed on the respondent and set it at the amount of €10,000 in accordance with Article 58.2 of the GDPR.

VII

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, since it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

In view of the above, the following is issued:

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €10,000 (ten thousand euros).

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the

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Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data

Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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